

**LIMITED SOURCE JUSTIFICATION
FOR FAR PART 8 ACQUISITION**

1. **Contracting Agency:** US Army Corps of Engineers, Louisville District, PO Box 59, Louisville, KY 40201-0059.
2. **Description of the Action:** Approval is requested to employ brand-name or equal product descriptions to describe the Audio Visual (AV) requirements in the project specifications for the GSA delivery order contract for AV equipment for Kessler Elementary School (ES) located on Ft. Stewart in Georgia. The Government will purchase the AV equipment directly through competitive solicitation utilizing the General Services Administration (GSA) Schedule Contract. The awarded contract will include both the purchase and installation of AV equipment and will be executed independently of any building construction or renovation contracts. The AV will be funded by FY25 operation and maintenance funds (O&M). The estimated value of this justification is \$56,160.00.
3. **Description of Supplies/Services or Nature of Construction:** The project specifications include one instance where a name-brand product description is used to describe the project's AV requirement for a network switch. Attachment 1 includes a complete list of the item described with a brand name or equal product description, and its estimated costs.
4. **Authority Cited:** 10 United States Code 2304(c)(1), as implemented by FAR 6.302-1, FAR 6.303, and DFARS 206.302-1(c)(2), Only one responsible source and no other supplies or services will satisfy agency requirements. In accordance with Defense Federal Acquisition Regulation (DFARS) 206.302-1(c)(2) and section 888(a) of the NDAA for FY17 (Pub. L. 114-328), this J&A is required in order to use brand name or equal descriptions to describe the AV requirements for the project.
5. **Reason for Authority Cited:**

Background: DoDEA is in need of AV upgrades for Kessler Elementary School (ES) located on Ft. Stewart in Georgia. The objective is to provide the AV equipment in order to effectively implement DoDEA's mission to provide adequate educational activities to the children attending their schools. Additionally, the need to provide a DoDEA approved network switch, to include programming, so the system can be tested and used on the DoDEA network system is necessary to ensure full function of these systems. These activities require sufficient space with up-to-date furnishings and equipment and will enhance the educational experience of those attending this DoDEA school. The AV equipment will be installed in common spaces including multipurpose rooms, broadcast room, and gyms. This limited source justification is for stand-alone supply and installation delivery order equipment contract. Section 888(a) of the Fiscal Year 2017 (FY17) National Defense Authorization Act (NDAA) (Pub. L. 114-328) requires competition on Department of Defense contracts not be limited through the use of brand name or equal descriptions or proprietary specifications or standards, in solicitations, unless a justification is approved in 10 USC 3204(a)(1).

Justification: Inclusion of brand name or equal descriptions in the basis of design for AV equipment is necessary in order to sufficiently define the scope of work to be performed by the supply and installation contractor and to adequately establish the required level of product quality. Competition is only limited to the extent necessary to meet the Government's legitimate needs of this project.



It is not feasible to specify every single function, piece, and part of equipment necessary to obtain an acceptable level of quality. Most equipment manufacturers that produce products of the requisite level of quality have proprietary functions that set them apart from their competition. Specifying the details that make any one product acceptable from a quality perspective, could unintentionally lead to the specification of proprietary features. By listing manufacturers for basis of design, an expectation is set of the level of quality required for the upgrade of the equipment, without unnecessarily restricting competition.

AV equipment has many parts, pieces, and other requirements that must be considered in order to achieve the necessary level of quality. This includes critical requirements in the manufacturing, assembly, on-site installation, and warranty phases of equipment procurement. AV equipment manufacturers must have a network of installers/distributors that support them and certified installation teams that assemble the packages on-site and support the manufacturer's warranty.

Listing the manufacturers sets an expectation from the bidders of what level of supply and service the Government requires. These relationships between the manufacturer and installers have specific programs that hold them accountable and ensure consistent quality and service in all aspects of equipment delivery. The quality standards do not address these essential components of AV equipment quality.

The identified brands/ manufacturers, or proprietary specifications for each item included in the equipment package are intended to be examples for the basis of design to help ensure the equipment provided ultimately satisfies the Government's quality requirements, including requirements related to installation and warranty.

Impact: Providing the make and model of equipment used as the basis of design is an industry standard necessary to complete a 100% design needed for AV equipment procurement. There is no other way to describe the standard of quality of equipment that will satisfy the needs of the end user. Complete equipment packages utilizing brands/ manufacturers and product descriptions ensure that the Government has maximum control over the design of the requirement and can maximize competition amongst Offerors. If the basis of design elements here were not permitted to be used, it would effectively limit the ability of the Government to control the design and would create a risk that the end user would receive less expensive, low-quality equipment that do not satisfy quality requirements. Selecting a few manufacturers to represent the required quality of products also assists in the development of cost estimates.

6. **Alternatives:** There is no alternative method to complete a 100% design suitable for the requirements of an AV equipment contract. Utilizing a basis of design, with listed

alternatives, is a critical component of designing complete and coordinated packages under UFC 3-120-1, paragraph 4-5.1. It is not possible to fully design an AV equipment package that guarantees the Government will receive the required level of quality in the provided furnishings and equipment without referencing examples of acceptable products that will satisfy the functional, space and quality requirements.

- 7. Efforts to Obtain Competition:** Competition is obtained to the maximum extent practical while meeting the agency’s requirements by utilizing a specific product only to the extent it is necessary to complete the 100% design, while allowing contractors to use the brand-named or any other product which meets the government’s minimum characteristics and standards of quality. An NOI will be posted on Sam.gov and this FAR Part 8 limited source J&A will be updated if any responses are received.
- 8. Actions to Increase Competition:** This justification supports a discrete requirement that will end when the project is complete. Therefore, there are no planned actions to increase competition for the requirement covered by this limited source justification.
- 9. Market Research:** Based on involvement of experts in the field, knowledge of the market, review of product availability, and discussion with multiple manufacturers, there are more than sufficient products available to meet project needs. Items listed in the project plans and specs are provided solely as the necessary basis of design.
- 10. Other Factors:** None.
- 11. Technical Certification:** I certify that the supporting data under my cognizance, which are included in the Justification and Approval, are accurate and complete to the best of my knowledge and belief.

[Redacted] [Redacted] Signature: _____

[Redacted] [Redacted] Date: _____

- 13. Requirements Certification:** I certify that the supporting data under my cognizance, which are included in the Justification and Approval, are accurate and complete to the best of my knowledge and belief.

[Redacted] [Redacted] Signature: _____

[Redacted] [Redacted] Date: _____

TAG	DESCRIPTION	BRAND BASIS FOR DESIGN	PART # BASIS FOR DESIGN	QTY	ESTIMATED UNIT PRICE	EXTENDED
	Network Switch	Ruckus	RUC-ICX7450-48P-E2	2	\$ -	\$ -